

an honest substance and in fact "Henry Perry"
 from to & back and before me same Oct 20 1849
 "Daniel R. Nabler, Justice of the Peace"

The following is a copy of the notice of the said application
 for execution filed in this case

To Geo. W. Johnson, Plaintiff, do hereby certify that on
 the 3rd day of July A.D. 1849 at 9 o'clock A.M. application was
 made to Marshall & Griffin one of the Justices of the Court of
 Common Pleas of Delaware County, at his residence for the
 allowance of a writ of injunction to restrain you from the collection
 of a certain judgment rendered in your favor Oct 20 1849
 against Luke Lavenue on the docket of P. R. Nabler Esq.
 P. R. Nabler Esq. 1849, Term No. 1 Henry Vol for Comp.
 To acknowledge service of the within notice " same Oct 11/49
 W. R. Johnson

Whereupon the said writ of injunction was issued in this
 case to wit

The State of Ohio, Delaware County, ss.

To the Sheriff of Delaware County, ss.
 We command you to summon William Johnson to appear
 before the Justices of the Court of Common Pleas for said
 County at Delaware on the first day of October term A.D. 1849
 to answer unto a petition in Chancery exhibited against him
 by Luke Lavenue. And this he shall in no wise disobey
 the penalty of One thousand dollars. And have then the
 writ of Writ of George W. Stark Clerk of said Court at
 Delaware this 1st day of July A.D. 1849
 G. W. Stark Clerk

Which writ was returned with the following endorsement
 thereon "July 7th 1849, Forfeiture made, P. R. Nabler, Sheriff"
 Injunction allowed, and bail given July 7th 1849
 Geo. W. Stark Clerk

And afterwards to wit at the October term of said Court of
 Common Pleas A.D. 1849 the following order was had, and
 entered in the cause to wit

William Johnson " In answer to order, that injunction
 be dissolved, and the cause continued

The following is the answer of William Johnson to the Rule
 of Complaint

The answer of William Johnson to the bill of Complaint of
 Luke Lavenue filed and now pending in the Court of Common
 Pleas for the County of Delaware against this respondent

The said William Johnson now admit, and for answer to do
 much of said bill as is material for him to answer unto, namely

says that time it is the said Henry Perry was the author of
 a part of the said Complaint at the time set forth in said
 bill — And further says that the said Henry Perry in the
 bill mentioned, was at the date of the order therein set forth,
 indebted to Henry Perry respondent in one hundred dollars
 or more, which he was unable to pay, but at the same time he
 [said] respondent the respondent that the said Henry Perry
 gave him as agent for the Complaint, as many objections
 to accept the [said] order for twenty thousand dollars, and
 also that Thomas Williams in the bill and order mentioned
 would take twenty dollars and pay the money for them, this
 respondent therefore acting upon this information, and moving
 to be made at least a part of his claim, gave the said order
 to draw the order to the tenor as a part set out in the bill, and
 the respondent and said [said] together went from the Court of
 Common Pleas and towards the bank yard of said Complaint, and for
 the purpose of procuring the acceptance of the said Henry Perry
 agent as aforesaid, to said order. This respondent with said
 [said] met or went to said Perry between said bank yard and
 said Court, & this respondent charges that said Perry came
 with him & said [said] to said Perry, and that in the office as
 that there belonging to Messrs. Howard Sharp & Co. Callough
 in the presence of said [said], & this respondent accepted the
 same by writing thereon the words set out in the bill, purporting
 to be an acceptance — This respondent then together with
 said [said] went to said Thomas Williams & according to
 make the money on the bank called for in said order, but the
 said Williams then declined paying, cash for the bank
 wishing to pay for them in United States — This proposition
 was not agreeable to this respondent & the said [said]
 desired this respondent to take said order as accepted and
 offered in full payment of his [said] in debt due to
 this respondent as aforesaid, which this respondent
 agreed to do — This respondent admits the payment of
 about \$400 of the bank called for in said order, for which
 he cannot be allowed — This respondent also admits the
 commencement of said suit in attachment, the filing of said
 order as a claim under it, and the judgment obtained thereon
 as charged in said bill, which said judgment is still in force, and
 unsatisfied — This respondent positively denies that the said
 acceptance of said order as mentioned as aforesaid is a forgery,
 but charges that said Henry Perry as agent as aforesaid, did
 accept the same in writing as above stated — This respondent
 charges that the time the judgment above mentioned was
 rendered, said order worth \$2000 being for at the bill for
 \$2000 per thousand & that therefore the judgment should have
 been for \$70, and a sum for the \$400 bank paid allowed at the

104 June Term are true in substance and in fact , Henry Perry Sworn to & Subscribed before me June 26th AD 1849 11 James R. Hubbell Justice of the Peace The following is a copy of the notice of the said application for Injunction filed in this case T. Doctr Wm Johnson -- You are hereby notified that on the 2d day of July AD 1849 at 9 oclock A.M. application will be made to Marshall L Griffin one of the Judges of the Court of Common Pleas of Delaware County at his residence forth allowance of at of injunction to restrain you from the collection of a certain judgment rendered in your favor Feb. 24 , 1849 against Luke Lavender on the docket of J R Hubbell Esq . J. P. June 30th 1849 . Yours & c. I Ranney Sal for Comp I acknowledge service of the within notice 11 June 30th 149 Wm Johnson Whereupon the following writ of Subpoena was issued in this The State of Ohio Delaware County to To the Sheriff of Delaware County Greeting We command you to summon William Johnson to appear before the Judges of the Court of Common Pleas for said County at Delaware in the first day of October Term AD 1849 to answer unto a petition in Chancery exhibited against him by Luke Lavender . And this he shall in no wise omit man the penalty of One thousand dollars . And have then the this writ . Witness George W Stack Clerk of said Court at at Delawan this 7th day of July which writ was returned with the following endorcements thereon " July 7th 1849 . Personally served , A Jones Sheriff " Injunction allowed and are given And afterwards to wit at the October term of said Court of Common Pleas AD 1849 , the following order was had and entered in this cause to wit Luke Lavender V #- William Johnson " On motion ordered , that injunction heretofore allowed in this case be dissolved & cause continued The following is the answer of William Johnson to the Bill the son of William John Son to the bill of complaint of Luke Lavender filed and now pending in the Court of Common Pleas for the County of Delaware against this respondent the said William Johnson now comes , and for answer to so much of said will as is material for him to answer unto and 102 AD 1850 says that true it is the said Henry Perry was the authorized agent of the said Complainant at the time set forth in said and further says that the said Aaron Caton in the will mentioned , was at the date of the order therein set forth indebted to him (this respondent in one hundred dollars or over which he was unable to pay , but at the same time he Caton informed this respondent that the said Henry Perry aforesaid as agent for the Complainant , was under obligations to accept his (Caton 's order for twenty thousand brick and also that Thomas Williams in the hill and our mentioned ined take twenty brick and pay the money for them . This respondent therefore acting upon this information , and wishing to secure at least a part of his claim procured the said Catin to draw the order to the tenor and effect set out in the hill , and this respondent and said Caton together went from the Town of Delawan towards the brick yard of said Complaiant for the purpose of procuring the acceptance of the said Henry Perry agent as aforesaid , to said order . This resonant with said Caton , met or we took said Perry between said brick yard and & said Town , & this respondent charges that said Jerry came with him & said Caton to said Town , and there in the office at that time belonging to Mess Howard Sharp & McCullough in the presence of said Caton & this respondent accepted the same by writing thereon the words set out in the hill , purporting to be an acceptance -- This respondent then together with said Caton went to said Thomas Williams & endeavored to raise the money on the trick called for in said order , but the said Williams then declined paying cash for the brick , wishing to pay for them in Cabinet ware . This proposition was not

agreeable to this respondent . & the said Caton desired this respondent to take said order to accepted as aforesaid in part payment of his (Catons indebtedness to this respondent as aforesaid , which this respondent agreed to do . This respondent admits the payment of about 7400 of the brick called for in said order , for which credit should be allowed . This respondent also admits the commencement of said suit in attachment , the filing said order as a claim under it , and the judgment obtained thereon as charged in said will , which said judgment is still in force and unsatisfied . This respondent positively dues that the said acceptance of said order so written as aforesaid is a forgery but charges that said Henry Perry as agent as aforesaid and accept the same in writing as above stated . This respondent charged , that the time the judgment above mentioned was rendered , brick were worth & were selling for at the Kile for \$ 3.50 per thousand & that therefore the judgment should have been for \$ 70 , and a credit for the 7400 orch paid allowed at the

Citation:

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